

		privilege log to allow Defendant and the Court to evaluate the claimed privilege. Thus, further responses are required as to no 62-96. <u>Defendant's Motion to Compel, Set Three</u> Defendant Jun Chow's Motion to Compel Further Responses to Requests for Production, set three, is GRANTED. Plaintiff is ORDERED to provide further responses within 20 days of this order. Plaintiff and her counsel, jointly and severally, are ORDERED to pay \$1,260 in sanctions within 20 days of this order. Defendant's reply is not considered because it is untimely. (Cal. Rules of Court, rule 3.1300(d).) Plaintiff's responses to no. 97-103 are improper as they indicate that a diligent search had not been completed prior to responding to the request. Further, Plaintiff is instructed to provide a privilege log for requests no. 101-103. Thus, further responses are required for no. 97-103.
6	22-01244666 <i>Integritox Laboratories, LLC vs. Chan</i>	Motion for Leave to File Amended Cross-Complaint Cross-Complainant Daniel Y.K. Chan's Motion for Leave to Amend the Cross-Complaint is GRANTED. "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code of Civ Proc. § 473(a)(1).) "Generally, leave to amend must be liberally granted [citations], provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation." (<i>Solit v. Tokai Bank, Ltd. New York Branch</i> (1999) 68 Cal.App.4th 1435, 1448.) Here, Cross-Complainant seeks leave to file the proposed amended cross-complaint which adds several Cross-Defendants who are allegedly alter egos of Cross-Defendant Integritox. Cross-Complainant contends the identities of the new Cross-Defendants were discovered at the 4/17/24 deposition of Integritox's payroll processor, who testified Integritox employees had moved to Laboratory Services MSO and that Integritox's revenues had also been moved to Laboratory Services MSO by Sarah Cox, an owner of Integritox. Therefore, Cross-Complainant seeks to add Sarah Cox, SCBC Holdings, LLC (another LLC owned by Cox), and Laboratory Services MSO, LLC as Cross-Defendants.

		Integritox opposes the motion on the grounds that the motion does not comply with the Rules of Court because it fails to specify the page and line number of each revision. Integritox also argues the motion was filed belatedly based on facts which were already known to Cross-Complainant, and the payroll processor's testimony was biased against Integritox. The motion adequately complies with the Rules of Court, Rule 3.1324 because Exhibit 4 to the motion includes a redlined copy showing each revision to the proposed amended Cross-Complaint. Integritox's arguments regarding the merits of the Cross-Complaint may be raised at a later stage of proceedings, but at this stage the Court must liberally allow the amendment so that Cross-Complainant can litigate their claims on the merits against any entity that may be liable arising from the same set of facts. A trial date has not been set and Integritox fails to show undue prejudice resulting from any delay and resulting additional discovery that may be required by the amendment. Cross-Complainant shall file and serve the proposed amended Cross-Complaint within 20 days.
7	21-01185998 <i>Jackson vs. Collectors Universe, Inc.</i>	Motion to Appear Pro Hac Vice The application of attorney Amanda Waide, Esq. to appear pro hac vice as counsel for Defendant Collectors Universe, Inc. (also sued as Professional Sports Authenticator a/k/a PSA) in this matter is hereby CONTINUED to _____. Moving attorney has not met the requirements of California Rules of Court, Rule 9.40. While the supporting declaration of John P. Ward states Attlessey Ward, LLP paid the fees for the Application to the State Bar, proof of that payment was not submitted. (See Ward Decl., ¶ 5.) attorney Amanda Waide, Esq. is to submit proof of payment no later than 5 days before the continued hearing.
8	24-01382178 <i>Kim vs. Kkanbu Restaurant, Inc.</i>	Motion for Leave to File Cross Complaint The Motion for Leave to file a Cross-Complaint brought by Defendants Kkanbu Restaurant, Inc. and Ai Ran Yang is GRANTED, pursuant to Code of Civil Procedure section 428.50, subdivision (c). Defendants shall separately file and serve the proposed Cross-Complaint, attached as Exhibit A to the Declaration of John Heath, within 10-days. A review of the proposed Cross-Complaint confirms the claims therein arise out of the same transaction or occurrence, as the Complaint: Moving Defendants allege Defendant Hyun Mi Kim breached a written agreement by, among other things, "failing to operate Kkanbu Restaurant in a reasonable and responsible manner" and "failing to take responsibility for all matters regarding staffing of employees..." (¶2 of Heath Declaration and Exhibit A thereto, at ¶11.) The Cross-Complaint additionally alleges Defendant Hyun Mi Kim breached a duty "to reasonably operate Kkanbu Restaurant," by failing to follow proper labor practices and failing to pay expenses. (<i>Id.</i> at ¶15-¶16.)